FROM THE

EDITOR-IN-CHIEF

In India, controversies sometimes emerge out of the unlikeliest places and when you least expect them. Last month, it erupted in coastal Karnataka when a group of schoolgirls in a government-run pre-university school said they were being prevented from entering their classrooms because they were wearing hijabs (headscarves). The issue snowballed into a larger conflagration. Several such incidents were reported across the state, the state government ordered an unprecedented three-day closure of all schools, and the schoolgirls petitioned the high court. Whether or not hijabs can be worn to school is now a question that the courts will have to answer.

Although the controversy arose in the intensely polarised landscape of coastal Karnataka, it soon spread to other educational institutions in the state. The issue now boils down to an individual's right to practise their religion versus the right of a government educational institution to impose a dress code.

More significantly, it has raised some fundamental issues of human rights as defined in the Constitution. Two of these rights, guaranteed under the Constitution, of religious and personal freedom, are relevant to this debate. The Right to Equality under Article 14 prohibits discrimination on the grounds of religion, race, caste, sex or place of birth. The Right to Freedom of Religion under Article 25 says all persons are equally entitled to freedom of conscience and the right to profess, practise and propagate religion freely.

The hijab controversy goes even deeper into the question of whether we are a country that accepts a diversity of cultures—an attribute celebrated across the world. As if this were not enough, other sensitive subjects—gender rights, identity, community relations and electoral politics based on majority-minority conflicts—have joined the fray. With assembly elections underway in five Indian states, this has predictably ballooned into a political controversy, just as other issues have in recent years—from cow slaughter to protests over the Citizenship Amendment Act (CAA). Another way to view the hijab issue is to see it as hardening of the Hindu stance on food and clothing. There has simultaneously been a Muslim consolidation and pushback, with members of the minority community re-emphasising their identity through clothes. Unfortunately, this leads to more conflict than resolution because political parties are quick to harness emotional issues into vote-catching strategies and polarise the debate.

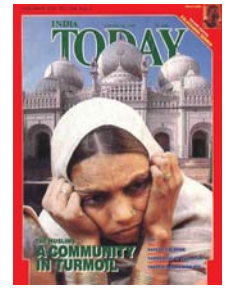
Sporting religious accoutrements like veils and headscarves in public has been globally contentious. In 2018, conservative Saudi Arabia lifted a decades-old ban that made it mandatory for women to completely cover themselves in public. Women could now choose what they wore as long as they were modestly dressed. In 2011, France passed legislation to ban the covering of faces.

In India, the debate on whether a hijab can be worn has so far been confined to government-funded educational institutions like schools where children are required to wear uniforms up to the 12th standard. The fact that many of the educational institutions in Karnataka have been inconsistent in their stand on the issue—allowing the hijab earlier and then suddenly banning it—has only aggravated the situation. Even students who were happily going without hijabs are now donning it. The issue has now acquired communal overtones. It could easily lead to calls for bans in other spaces.

One key question being asked now is whether the hijab is essential to the practice of Islam given the ambiguities over its usage. The Quran mentions the word 'khimar,' meaning a piece of cloth covering the head. Some women choose to cover their faces and hands too, but this is not scripturally mandated.



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We asked three scholars to weigh in on the debate. Islamic scholar Zafarul-Islam Khan says the hijab broadly denotes the modest dress code Muslim women should observe in the presence of men outside their immediate family. Mejindarpal Kaur, International Legal Director of the NGO United Sikhs, believes a hijab-wearing woman must be respected for exercising her choice to wear it. As she says, freedom of religion or belief is a private right in a public place. You cannot expect a person to hold a belief or to practise their faith privately. That too on a part-time basis, as it would be antithetical to the universality of the religion or belief, she says. Scholar and author Purushottam Agrawal believes the job of a progressive society—of scholars of religion, culture, and gender—is to penetrate the veil. Not to smile indulgently at regression, but to persuade young people against it. Harassment of young girls, of course, is no way to convince them. Possibly wearing the hijab in the prescribed manner in consonance with the school uniform could be an amicable solution.

Our cover story, 'The Hijab Face-off', written by Managing Editor Sunil Menon with an on-the-spot report by Nabila Jamal, Senior Anchor, India Today TV, examines the present controversy and addresses the big questions in the debate.

What I find distressing is the radicalisation of school-going children on both sides. Girls are wearing hijabs or niqabs and boys are waving saffron scarves and confronting each other on the street. This doesn't bode well for the future of India.

The hijab debate is important because it forces us to ask questions about what we essentially are—a multicultural, multi-religious society. We should look for ways to unite rather than divide our people.



(Aroon Purie)